

because they found it convenient to do so; it is now well settled that, since the ordinances were not registered in the colonies, they were in no way binding upon the colonial authorities.¹

But the royal ordinances were not the only enactments by which the Custom of Paris or "common law" of the colonies was supplemented or changed. The Sovereign Councils of the colonies might themselves issue decrees, and the ordinances issued by the council at Quebec fill several ponderous volumes.² Likewise the Intendant in New France and the Sub-delegate in Louisiana issued their multitude of *règlements* covering all sorts of matters from the most important to the most trivial, as the writer has elsewhere shown.³ Indeed, if there is any one feature which impresses the student of French administration in the New World, it is the prodigious official activity there displayed. Still this bewildering mass of colonial legislation did not greatly modify the general principles of colonial law as set forth in the Custom of Paris and in those of the royal ordinances which had been registered, for the obvious reason that the ordinance power of the colonial authorities was limited to the elucidation and interpretation of the law, and did not extend to the radical alteration of it. It is true, however, that they did not limit themselves strictly in this respect, but allowed themselves considerable latitude, for, as one of the intendants expressed it in a despatch to the king, there would soon be more lawsuits in the colony than persons, if the authorities did not hold themselves free to order things in a fashion which often involved wide departures from the letter of the law.⁴

When the French withdrew from their extensive territories in 1760, therefore, they left implanted in these a legal system which was fundamentally Teutonic in character, and which, except so far as the law of special contracts was concerned, bore very little important trace of Roman influence. The jurisprudence of the French colonies in America had been much less romanized than the jurisprudence of the motherland at this time; for many branches of the home jurisprudence had been thoroughly impregnated

¹ F. P. Walton, *The Scope and Interpretation of the Civil Code of Lower Canada* (Montreal, 1907), especially the cases cited on p. 4, note 3.

² *Jugements et délibérations du conseil souverain de la Nouvelle-France* (6 vols., Quebec, 1885-1891).

³ "The Office of Intendant in New France" in *American Historical Review*, October, 1906, pp. 15-38.

⁴ Raudot to Pontchartrain (November 10, 1707), in *Canadian Archives*, Series F., vol. xxvi. pp. 7 ff.

with Roman influences through the issue of the great ordinances which, as has been stated, were not registered in the American colonies of France, and were consequently not part of the legal systems there. Somewhat strange and paradoxical as it may appear, a large part of the Roman influence which now appears in the civil jurisprudence of Quebec and Louisiana made its way to these jurisdictions, not during the period of French dominion, but since the expulsion of France from the New World. This may be best illustrated, perhaps, by confining attention to the former of these two jurisdictions alone.

It is a recognized principle of English public law that the conquest of alien territory does not, *ipso facto*, involve the extension thereto of the English law of property and civil rights.¹ On the contrary, the law of the conquered territory remains in full force and effect until such time as the new suzerain may alter or abrogate it by explicit enactment. The conquest of Canada, therefore, left the colony with its old law for the time being. But this ancient jurisprudence was soon set aside, for within three years after the conquest, on October 7, 1763, a royal proclamation provided for the establishment of new courts in the colony and directed specifically that these tribunals should "hear all causes, both criminal and civil, as near as may be agreeable to the law and equity of England."²

The intent of this proclamation was without doubt to abrogate entirely the Custom of Paris and the other factors in the old law system of the province, replacing these by the common law and equity jurisprudence of England. But it is quite an open question whether the king of England, by the mere exercise of his royal prerogative and through the elementary agency of a royal proclamation, had power to make this sweeping change.) There are those who believe that a change of this nature could be made only by Act of Parliament. The question is one which has been discussed at considerable length by the legal savants of French Canada, and until very recently the weight of opinion has inclined to the view that the king did not possess the right to abrogate the old law by proclamation.³ One of the higher courts of Quebec,

¹ The leading case on this point is *Campbell v. Hall*, 1 Cowp. 204.

² Canadian Archives, Series Q., Vol. 62A, Pt. I, pp. 114 ff. An exact copy of the proclamation is printed in "Documents relating to the Constitutional History of Canada" (ed. A. Shortt and A. G. Doughty, Ottawa, 1907), pp. 119-123.

³ Rudolphe Lemieux, *Les origines du droit franco-canadien* (Montreal, 1901), pp. 363 ff.

moreover, assumed this attitude in an important decision;¹ and in another significant case the chief justice argued convincingly in the same direction, although the determination of this point was not essential to the decision of the court.² But the most recent writer on the subject has concluded, after a discriminating review of the whole matter, that the king did have the power to abrogate the old law by proclamation, and that the proclamation of 1763 did legally abrogate the French jurisprudence in favor of the laws of England.³ I am convinced that this conclusion is entirely sound. The question is, however, one of academic rather than of practical interest, for the terms of the proclamation, in their original form, were never put into general operation.

Apart altogether from the question of legality there were important practical difficulties in the way of the change. For one thing it was immediately found that the new English law of real property could not be applied by the courts to the settlement of disputes concerning proprietary rights, for the obvious reason that this law dealt mainly with the principles and incidents of socage tenure, whereas the land tenures of Canada were at this time almost wholly feudal, and it was the intention of the English authorities, in compliance with pledges given at the time of the conquest, to leave the land tenure system untouched.⁴ As the new law was so clearly unadapted to the subject matters with which it had to deal, the governor of the colony instructed the courts to apply the old law to disputes concerning land until the home government could be consulted on the point. In 1766 the English authorities gave instructions that in "all suits and actions relative to the titles of land, and the descent, alienation, settlement, and encumbrance of real property the colonial courts do govern themselves in their proceedings, judgments, and decisions by the local customs and usages which have hitherto governed and prevailed within the province."⁵ The common law of England here received, so far as the new possessions in America were concerned, its first important set-back.

¹ *Stuart v. Bowman*, 2 L. C. Rep. 369 (1851).

² The judgment of Sir Louis H. Lafontaine in *Wilcox v. Wilcox*, 8 L. C. Rep. 34 (1857).

³ F. P. Walton, *The Scope and Interpretation of the Civil Code of Lower Canada* (Montreal, 1907), pp. 12-19.

⁴ This whole question of the relation of feudal tenures to the new legal system is discussed at length in the writer's "Seigniorial System in Canada" (New York, 1907), Chap. XI.

⁵ Instructions to the Hon. James Murray (June 24, 1766) in Public Record Office, London, Board of Trade, Canada, vol. xv.

It was soon to receive, however, a much more severe assault, for the courts promptly found difficulty in administering the two systems of law side by side. Considerable chaos resulted from the fact that the royal decrees, the colonial ordinances, and the decisions of the courts during the French régime were yet unpublished: they were still in manuscript, in a handwriting difficult to follow, unarranged, unindexed, and to some extent scattered. It was only natural, therefore, that the English judges should have, in most cases, given up any serious attempt to ascertain the old law, and should have resorted, for the determination of matters which came before them, either to the rules of English law relating to tenure in copyhold or to the rules of Roman law relating to tenure *en fief*. Recognizing the difficulties which confronted the courts in complying with the letter of their instructions, Governor Carleton appointed a "Select Committee of Canadian Gentlemen well skilled in the Laws of France and of that Province," to make a digest of the whole body of provincial jurisprudence as it had existed in the colony prior to the coming of the English. This codification was accomplished in 1773.¹ It is worth noting, however, that the committee allowed itself considerable leeway in its work; for while its task was specifically to make a digest of the laws which had actually governed private relations in the colony before 1760 it sought guidance for its arrangement of the abstracts, and to some extent guidance in interpretation, in the works of the standard French commentators of the period. These, as is well known, had written under the influence of a more or less thorough training in the Roman law, and they transmitted some of this influence to the Canadian codifiers. Some Roman law therefore worked its way into Quebec through the decisions of the courts in the period 1764-1774 and through the work of those who codified the ancient laws during the latter years of this decade.

In 1774 the provisions of the Quebec Act restored the old French

¹ It was published in four parts at London during the years 1772-1773. The exact titles of the four parts are: 1. An Abstract of those Parts of the Custom of the Viscounty and Provostship of Paris which were received and practiced in the Province of Quebec in the time of the French Government. 2. The Sequel to the Abstract . . . containing the Thirteen latter Titles of the said Abstract. 3. An Abstract of the Criminal Laws that were in force in the Province of Quebec in the time of the French Government. 4. An Abstract of the Several Royal Edicts, and Declarations, and Provincial Reglutions and Ordinances that were in force in the Province of Quebec in the time of the French Government, and of the Commissions of the several Governors-General and Intendants of the said Province (London, 1772-1773).

law in "all cases relating to property and civil rights," thus ousting from the province all that was left of English law in its application to other than criminal causes.¹ This was a very welcome concession to the French-Canadians, and doubtless had some influence in keeping them from casting in their lot with the revolting American colonists to the southward. By these latter, as is well known, the change was regarded as a species of treason to Anglo-Saxon institutions, and in the Declaration of Independence George III was rebuked, *inter alia*, "for abolishing the free system of English law in a neighboring province." At any rate, the Quebec Act restored in its entirety the civil jurisprudence of the old régime, and it has remained in full force throughout the Province of Quebec down to the present day. The English criminal law has, however, existed side by side with it from the outset.

During the half century following the restoration of the old law system many changes were made in it; for the legislative authorities of the province had been given power to change it by enactment whenever changes might seem desirable. In 1785, for example, the provincial authorities made provision that in all commercial causes the English rules of evidence applicable to such proceedings were to be followed. These English rules of evidence in commercial causes were founded, however, on the rules of the old law merchant, and as they were in their origin rather international than national they did not differ in essentials from those which were prescribed in the Ordonnance de la Marine of 1681,² one of the Grand Ordinances which had never been registered in the colony. Other statutes made important changes in various branches of the law, and the abolition of the seigniorial system of land tenure in 1854 made a very radical change, not in the law itself but in one of the chief subjects with which the civil law had to deal. During this period, moreover, a considerable development took place through the agency of judicial decisions. The judges of the province turned constantly for enlightenment to the commentators of Old France, to the decisions of French courts, and, above all, to the provisions of the Code Napoléon after that compilation had been prepared. In many respects the provincial jurisprudence, therefore, while professing to be a perpetuation of the old legal system, was steadily departing from this latter. Through the channels

¹ 14 Geo. III. c. 83.

² This ordinance may be found in Isambert's *Recueil général*, vol. xix. pp. 282 ff.

which have just been mentioned the influence of Roman Law exerted itself strongly and with enduring effect.

In 1857 it was deemed advisable that the civil law system of the province should be revised and recodified, for there had been no important revision since 1773. The work was committed to a commission of French-Canadian jurists by whom it was accomplished with high credit. When the task was completed, the compilation was enacted as the *Code Civil de Québec*. If there was any one feature which marked the labors of this commission, it was the unremitting attention which they gave to the *Code Napoléon* and the large extent to which they drew from this source. In its arrangement the *Code Civil de Québec* follows the *Code Napoléon* almost slavishly. In matter the dependence is extensive and obvious. Many articles are reproduced verbatim; many others show only mere verbal transposition. With the exception of a single book,¹ indeed, the *Code Civil de Québec* may be much more properly looked upon as a recension of the *Code Napoléon* than as a revision and recodification of the French civil law as it had existed in the colony before the English conquest.

Now those who are familiar with the history of the legal system of modern France do not need to be reminded of the mighty debt which the *Code Napoléon* owes to the Roman Law. This obligation, direct and indirect, is made perfectly clear in the collection of sources which the Bonapartist compilers used in the consummation of their monumental task.² The legal system of France had been steadily romanized during the century preceding the Revolution, and the compilers of the *Code Napoléon* completed the process. It may not be amiss therefore to point out that the *Code Civil de Québec*, in so far as it is based upon the Napoleonic compilation, shares equally in indebtedness to the jurisprudence of Justinian. It is probably well within the bounds of truth to suggest that more Roman law found its way into the contemporary legal system of French Canada by way of the *Code Napoléon* than through any other channel, or, possibly, through all other channels combined.

The dominance of Roman juridical ideas in this province is not, therefore, a heritage from the days of French possession. It is not because the French established there the Custom of Paris; but

¹ Book IV.

² These sources are brought together in Fenet's *Recueil complet des travaux préparatoires du Code Civil* (15 vols., Paris, 1827-1829).

because under English rule there have been wide departures from this original code. When the French left Canada in 1763, they left behind them a system of jurisprudence which probably owed more to Teutonic than to Roman sources. It is of course not unnatural that, being French in origin, the law system of the province should have continued French in development despite the passing of the colony into the hands of a new suzerain and notwithstanding the startling break in the continuity of French legal evolution which marked the Revolutionary and Napoleonic periods. But it was not essential that the civil jurisprudence of Quebec should have taken this course. In fact it was the intention of the English authorities at the outset to turn it into quite another channel. From this policy they eventually refrained, however, and by so doing gave recognition to the principle that, in the evolution of a legal system, ethnic factors are apt to prove more potent than the pressure of political control.

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